

Date: Wed, 11 Feb 2026 4:25:09 PM (UTC)
Sent: Wed, 11 Feb 2026 4:25:08 PM (UTC)
Subject: Re: Flock Camera Concerns
From: Stephan Casazza <casazza@cityofsanmateo.org >
To: Kelly O'Keefe <kokeefe@cityofsanmateo.org >;

Sounds good. The SOP definitely needs to be cleaned up. In regards to the Policy, 463.10 covers that audits will be conducted monthly so we should remove "regular" from (c) of 463.6 and make that read monthly as well.

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From: Kelly O'Keefe <kokeefe@cityofsanmateo.org >
Sent: Wednesday, February 11, 2026 7:58:23 AM
To: Stephan Casazza <casazza@cityofsanmateo.org >
Subject: RE: Flock Camera Concerns

Phone works, let me see if I can track the Chief down first.

From: Stephan Casazza <casazza@cityofsanmateo.org >
Sent: Wednesday, February 11, 2026 7:50 AM
To: Kelly O'Keefe <kokeefe@cityofsanmateo.org >
Subject: Re: Flock Camera Concerns

Hi Kelly-

I am available by phone this morning or can come in if needed.

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From: Kelly O'Keefe <kokeefe@cityofsanmateo.org >
Sent: Wednesday, February 11, 2026 6:44 AM
To: Stephan Casazza <casazza@cityofsanmateo.org >; Ed Barberini <ebarberini@cityofsanmateo.org >
Subject: FW: Flock Camera Concerns

Morning,

Hate to belabor this any more, but do you both have time this morning to discuss this?

From: Paul Pak <pak@cityofsanmateo.org >
Sent: Tuesday, February 10, 2026 6:22 PM
To: Kelly O'Keefe <kokeefe@cityofsanmateo.org >
Subject: RE: Flock Camera Concerns

Hi Kelly,

Policy 463.10 was created on 12/22/2025. I attached Policy 463 prior to the update and highlighted the audit section. I have also attached SOP 205 and highlighted the audit section.



Paul Pak

Lieutenant | Support Services
City of San Mateo Police Department
200 Franklin Pkwy, San Mateo, CA 94403
650-522-7685 | ppak@cityofsanmateo.org

From: Kelly O'Keefe <kokeefe@cityofsanmateo.org>
Sent: Tuesday, February 10, 2026 3:35 PM
To: Paul Pak <pak@cityofsanmateo.org>
Subject: FW: Flock Camera Concerns

Paul can you advise the date/dates of policy 463.10 and if there was an audit provision in there prior to our last amendment.

From: Kelly O'Keefe
Sent: Tuesday, February 10, 2026 3:35 PM
To: 'Brian C' <brian@zerobelow.org>
Cc: Rob Newsom <rnewsom@cityofsanmateo.org>; Ed Barberini <ebarberini@cityofsanmateo.org>; Alex Khojikian <akhojikian@cityofsanmateo.org>
Subject: RE: Flock Camera Concerns

Hi Brian,

We do not have any records of audits prior to December.

I will reach out to the Administrative Lieutenant, Paul Pak, to answer your questions regarding the date of policy 463.10 as well as if the prior policy contained an audit provision.

Thank you,
Kelly

From: Brian C <brian@zerobelow.org>
Sent: Tuesday, February 10, 2026 3:19 PM
To: Kelly O'Keefe <kokeefe@cityofsanmateo.org>
Cc: Rob Newsom <rnewsom@cityofsanmateo.org>; Ed Barberini <ebarberini@cityofsanmateo.org>; Alex Khojikian <akhojikian@cityofsanmateo.org>
Subject: Re: Flock Camera Concerns

Where are the audit memos from before December?

When was 463.10 added to the city's policy? And what was the prior audit provision?

On Tuesday, Feb 10, 2026 at 2:53 PM, Kelly O'Keefe <kokeefe@cityofsanmateo.org> wrote:
Hello Brian,

Please see the attached responsive documents and the answers to your inquiries.

Thank you,
Kelly O'Keefe

Kelly O'Keefe
Police Technical Services Administrator| San Mateo Police
200 Franklin Pkwy, San Mateo, CA 94403
650-522-7709 | kokeefe@cityofsanmateo.org

-----Original Message-----

From: Brian C <brian@zerobelow.org>
Sent: Friday, February 6, 2026 5:02 PM
To: Kelly O'Keefe <kokeefe@cityofsanmateo.org>
Cc: Ed Barberini <ebarberini@cityofsanmateo.org>; Alex Khojikian <akhojikian@cityofsanmateo.org>;
Rob Newsom <newsom@cityofsanmateo.org>
Subject: Re: Flock Camera Concerns

Hi Kelly,

Thank you for the thorough response.

In addition to the listed items, my request also included the monthly and quarterly audit memoranda per policy 463.10 is a standalone request
-- those should already exist as routine filings for each of the months and quarters going back to the start of ALPR usage.

Additionally, beyond the one-time verification of the questions you listed below, I'm also inquiring about the department's ongoing process for detecting future configuration changes by both Flock or other internal or external parties. Mountain View's devices were out of policy for 17 months before discovered; what is San Mateo's recurring process for detecting current and future issues going forward?

-brian

On 2026-02-06 16:27, Kelly O'Keefe wrote:

Hello Brian,

Your request has been forwarded to me for processing as a California Public Records Act request. I am the Police Technical Services Administrator and oversee the Records Division. The Department maintains records related to audits and will review any responsive materials for release in accordance with the Act. In addition, I am coordinating with the Department's internal Flock committee to ensure you receive complete and accurate responses to the questions you raised, specifically:

1. What steps the Department takes to ensure its ALPR vendor is

operating in compliance with Department policy;

2. The Department's process for auditing ALPR cameras;
3. Whether the San Mateo Police Department has verified that none of its 31 cameras have statewide or national lookup capabilities enabled; and
4. Whether the Department has reviewed Flock's sharing configuration logs (in addition to search logs) to confirm this.

Please let me know if there are any additional inquiries within your original email that I may have missed. I anticipate having a response to you by early next week.

Thank you,

Kelly O'Keefe
Police Technical Services Administrator| San Mateo Police
200 Franklin Pkwy, San Mateo, CA 94403
650-522-7709 | kokeefe@cityofsanmateo.org

-----Original Message-----

From: Brian C <brian@zerobelow.org>
Sent: Friday, February 6, 2026 1:25 PM
To: Alex Khojikian <akhojikian@cityofsanmateo.org>
Cc: Rob Newsom <newsom@cityofsanmateo.org>; Ed Barberini <ebarberini@cityofsanmateo.org>
Subject: Re: Flock Camera Concerns

Hi Alex, Chief Barberini, and Rob,

Thank you for sending me the city's policy along with Flock's PR marketing materials. The attached marketing materials directly conflict with the city of Mountain Views recent findings of statewide access. The city's policies of auditing searches does not address any of the findings that the city of Mountain View encountered, where Flock silently changed system settings without their consent.

Could you also send copies of the memorandum of each monthly internal audit and quarterly statewide audit you've made, as per your policy 463.10. There should be several of those memos readily available. While this audit is not sufficient to remedy Flock's known deficiencies, it's a step in the right direction.

While there may be greater problems with ALPR systems in general, my immediate concern is about what the department is doing to ensure that your ALPR partner is meeting your policies? What is your process for auditing the cameras? Has San Mateo PD verified that none of its 31 cameras have statewide or national lookup enabled? Has it pulled Flock's sharing configuration logs (not just search logs) to confirm?

- * Mountain view found that Flock enabled "statewide" access on cameras despite department policy -- this was discovered on January 5, 2026.
- * Mountain view found that federal agencies accessed camera data despite cameras being set to not allow that.
- * Santa cruz found that statewide agencies accessed their camera data 4000 times on behalf of federal agencies
- * San Jose is being sued by the ACLU/EFF over their usage of these cameras
- * The state of California is suing El Cajon california over out of state sharing
- * Your attached letter from Flock admitted data sharing from March to June 2025, however Mountain View discovered further issues in January 2026, which means the fixes were either incomplete or new configuration issues emerged after the fixes were applied.
- * Flock's attached "Myths & Facts" sheet claims Flock "cannot share a customer's data without their approval." This directly contradicts Mountain View's finding that Flock enabled nationwide and statewide sharing without MVPD's permission or knowledge.
- * San Mateo's Policy 463.10 audits searches, not system settings.

Given the pattern of Flock violations across Bay Area cities, I'd ask that the City Council agendize a public review of San Mateo's Flock contract and audit practices, similar to what Half Moon Bay and Mountain View are doing.

Santa cruz canceled their flock contract after discovering 4000 cases of state agencies accessing their camera data on behalf of federal agencies.

<https://www.kqed.org/news/12069705/santa-cruz-the-first-in-california-to-terminate-its-contract-with-flock-safety>

Mountain View PD recently suspended their Flock contract when they discovered that Flock was enabling access to other agencies despite the department's plan.

"The audit also showed that a "statewide" search function was enabled on

29 of 30 cameras that were deployed, which was against protocols established for the pilot program, the city said. This function allowed Flock to enable access to state law enforcement agencies not approved by MVPD."

<https://www.cbsnews.com/sanfrancisco/news/mountain-view-alpr-cameras-uses-suspended-automated-license-plate-reader/>

"officers also uncovered that "statewide lookup" had been turned on for all the city's cameras since the program began 17 months ago, giving agencies across California access to Mountain View's data. The police department turned that setting off on Jan. 5, 2026."

<https://www.mv-voice.com/police/2026/01/30/amid-immigration-crackdown-mountain-view-discovers-unauthorized-access-to-license-plate-data/>

"During the prior federal administration, from August to November 2024, several federal law enforcement agencies accessed Mountain View's Flock Safety ALPR system for one camera via a "nationwide"

search setting that was turned on by Flock Safety. This setting was enabled without MVPD's permission or knowledge. The federal agencies that accessed the one camera's data include Bureau of Alcohol, Tobacco, Firearms and Explosives offices in Kentucky and Nashville, TN; Langley Air Force Base in Virginia; the U.S. GSA Office of Inspector General; Lake Mead National Recreation Area in Nevada; and an Ohio Air Force Base. Flock Safety did not retain records for that time period, which means the vendor cannot determine whether searches of Mountain View's data resulted in license plate information being shared."

<https://www.mountainview.gov/Home/Components/News/News/1203/284>

Half Moon Bay is reviewing their flock contracts

https://www.smdailyjournal.com/news/local/half-moon-bay-to-review-license-plate-readers-use/article_daa34f06-6353-4e2e-a4c4-2aa4f52cce66.html

The ACLU found that "Flock's default agreement with police departments gives the company the right to share data with federal and local agencies for "investigative purposes" even if a local department chooses to restrict data to its own officers."

<https://www.aclu.org/news/privacy-technology/flock-massachusetts-and-updates>

Santa Clara County has paused its Flock contract renewal pending a full investigation into whether Flock is violating local data-sharing policies. Los Altos Hills went further, taking all 31 of its Flock cameras offline entirely in January.

<https://localnewsmatters.org/2026/02/03/silicon-valley-flock-safety-license-plate-readers-ice/>

The California Attorney General has sued El Cajon for refusing to stop sharing ALPR data with out-of-state agencies in violation of SB 34. The AG sent compliance letters to 20 cities — 19 complied, El Cajon refused and is now in court.

<https://oag.ca.gov/news/press-releases/attorney-general-bonta-sues-el-cajon-illegally-sharing-license-plate-data-out>

"San Jose is being sued for its use of Flock cameras. The lawsuit by the Electronic Frontier Foundation and American Civil Liberties Union argues the city is violating the state constitution through warrantless searches of records of millions of drivers' movements."

<https://localnewsmatters.org/2026/02/03/silicon-valley-flock-safety-license-plate-readers-ice/>

I know that flock has said they have resolved those specific problems and issues. However, I work in tech. I know that the engineers working on these systems are totally unaware of whatever contracts you have, so they will regularly add new features, and only worry about it later when the problem is discovered and reported by a customer. Their data privacy lapses in the past (the mountain view cameras enabled nationwide sharing despite mountain view pd policies, and also despite california law blocking any out of state access to camera data). Since

they don't face penalties, they likely will do or are still doing the same behaviors, but more subtly.

-brian

On 2026-02-06 10:12, Alex Khojikian wrote:

Hi Brian,

The police department ALPR Policy is publicly available at [https://www.cityofsanmateo.org/DocumentCenter/View/99914/ALPR- Policy-1](https://www.cityofsanmateo.org/DocumentCenter/View/99914/ALPR-Policy-1)

2-23-2025 I've also attached a pdf version as well. A current account of ALPR activity and a list of all the entities we share data with is also publicly available at Flock Safety - San Mateo CA PD Transparency Portal<<https://transparency.flocksafety.com/san-mateo-ca-pd>> Additionally, I've attached several documents provided by Flock for reference and additional information.

Thanks,

Alex

[[cid:image002.png@01DC9751.154830B0](#)] <<https://www.cityofsanmateo.org/>>
A

lex

Khojikian

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650-522-7002 |

akhojikian@cityofsanmateo.org <<mailto:akhojikian@cityofsanmateo.org>>

From: Rob Newsom <newsom@cityofsanmateo.org>

Sent: Thursday, February 5, 2026 5:42 PM

To: Alex Khojikian <akhojikian@cityofsanmateo.org>

Cc: Brian@zerobelow.org

Subject: Flock Camera Concerns

Hi Alex,

I have sent you several texts from my neighbor Bryan Cervenka about the flock camera vulnerability to being hacked, and also about the risk of ICE using local city and municipalities Flock cameras without their consent.

Can you please send Bryan and cc: me- on what has been learned about this issue and if SM has concerns? & if so, our plans to address them.

Bryan, sorry for my delay in connecting you, but please be assured

that our CM and PD have already been looking into this.

Thanks,

Rob Newsom
Mobile: 415-710-9729

Get Outlook for iOS<<https://aka.ms/o0ukef>>

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